



July 20, 2026

Admiral Brian Christine
Assistant Secretary for Health
U.S. Department of Health and Human Services
200 Independence Ave, SW
Room 716G
Washington, DC 20201

Re: Request for 60-Day Extension of Comment Period - Docket No. HHS-OASH-2026-0232

Dear Admiral Christine:

On behalf of Holistic Alternative Recovery Trust, a 501(c)(4) organization dedicated to promoting responsible regulations of plant-based recovery products, we respectfully request a 60-day extension of the public comment period to respond to the Office of the Assistant Secretary for Health's request for information (RFI), Docket No. HHS-OASH-2026-0232, concerning the proposed threshold for the temporary placement of 7-hydroxymitragynine (7-OH) above a specified threshold in Schedule I of the Controlled Substances Act (CSA). We ask that the current July 31, 2026 closing date—less than 30 days after publication in the Federal Register—be extended to no earlier than September 29, 2026.

The RFI poses a series of highly technical and largely unprecedented questions, including how any proposed threshold should apply across botanical source material, semi-synthetic derivatives, and finished dosage forms; what analytical methodologies are capable of accurately measuring compliance; and how such a threshold could be administered in practice without producing arbitrary or unintended results. These questions cannot be answered responsibly without assembling and evaluating complex scientific, analytical, toxicological, pharmacological, and commercial evidence from a broad range of stakeholders. Given that the Department's recommendations will directly inform whether hundreds of thousands—if not millions—of Americans remain lawful consumers or become subject to criminal penalties, a comment period of less than thirty days is plainly insufficient. A modest extension would substantially improve the evidentiary record available to the Department, the Secretary of Health and Human Services, and the Attorney General, helping ensure that any recommendation rests upon the strongest scientific and empirical foundation available.

For the same reasons, we respectfully urge that OASH coordinate with the Drug Enforcement Administration (DEA) to hold the temporary scheduling order in abeyance until the evidentiary record developed through this proceeding has been fully evaluated and incorporated into the Department's scientific and medical assessment. Emergency scheduling is among the most consequential authorities Congress has delegated to the executive branch, permitting the government to bypass the ordinary notice-and-comment process based upon a determination that a substance presents an "imminent hazard to public safety." Such extraordinary authority should rest upon the most complete scientific record possible. Proceeding before this RFI has concluded—and before the Department has had the opportunity to evaluate the information it specifically requested from scientists, laboratories, clinicians, manufacturers, consumers, and other interested parties—would unnecessarily risk basing a nationwide criminal prohibition on an incomplete evidentiary record.

This request is not intended to delay the Department's work, but rather to improve it. The questions presented in the RFI acknowledge that important scientific, analytical, and implementation issues remain unresolved. The public interest is best served by ensuring that those questions are answered carefully before any temporary scheduling

determination takes effect. If the scientific evidence ultimately supports the Department's proposed approach, a more robust record will only strengthen that conclusion. If it does not, the additional information may prevent significant unintended consequences for consumers, researchers, regulators, and law enforcement alike.

We appreciate the Agency's consideration of this request and look forward to submitting substantive, data-driven comments.

Sincerely,

Jeff Smith, PhD

Executive Director

Holistic Alternative Recovery Trust